Constitutional Law — Lecture Notes

Article 19(1)(g) and trade restrictions · Article 21 case studies · Relationship of Fundamental Rights (Part III) and Directive Principles (Part IV)

■ Teal / blue core notes ■ *Purple italics* professor's informal remarks ■ Amber questions asked + answers ■ Red accuracy correction / added note

Lecture at a glance

- **Warm-up:** sleeping partner (Partnership revision); rights are never unlimited — Art 19(1)(a).
- **Art 19(1)(g):** right to practise any profession or carry on any occupation, trade or business — read liberally, but restrictable only reasonably and in the public interest. Test cases: prostitution, liquor, gambling, beef / cow slaughter.
- **Local conditions shape law:** cow-slaughter ban, sex-determination ban, abortion law abroad.
- **Part III vs Part IV:** Art 32 (enforceable) vs Art 37 (not enforceable) → Fundamental Rights prevailed (*Champakam*, 1951) → Parliament lifted Directive Principles (25th and 42nd Amendments) → *Minerva Mills* (1980): harmony, "two wheels of the same chariot".

1. Warm-up and Article 19(1)(a)

Sleeping (dormant) partner. A partner who invests in and shares the business but does **not take an active part** in running it. Lecture example: someone who puts inputs into a CLAT coaching centre but is neither present daily nor teaches. Other labels mentioned: *ostensible partner* and "three or four other terms". **Added:** being passive does not make one a stranger — a sleeping partner is still a partner, shares profits and remains liable to outsiders for the firm's acts (Indian Partnership Act, 1932).

Art 19(1)(a) (speech and expression) and **Art 19(1)(g)** are the two most contested clauses of Art 19; the other clauses "go together" and are less controversial. The recurring issue is **where your right starts and where it ends** — the Constitution itself allows reasonable restrictions (Art 19(2)–(6)).

Asked in class → Answer

? **What is a sleeping partner?** → A partner who does not get involved in actively running the business (the female student's answer, confirmed by the professor).

? **Law forbids entry to a place; you force your way in carrying the national flag — is it no offence?** → **No.** A flag does not legitimise breaking a valid prohibition (Jantar Mantar illustration: prohibited area, wall jumped, flag used as a shield).

Professor's informal remarks (in his words, paraphrased)

› *Opened by threatening mock "punishment" to anyone who hadn't read Contract Law. Honest reply "Sir, partnership hasn't been taught yet" is the right one — better than staring elsewhere.*

› *Joke: at an IIFT-type setting someone once answered "those who sleep together are sleeping partners" — "such nonsense words crop up".*

› *House rule: students must clap (twice!) before taking their seat. Using a flag as a shield after jumping a wall, he says, is what a coward does.*

2. Article 19(1)(g) — profession, occupation, trade or business

- **Text:** all citizens have the right "to practise any profession, or to carry on any occupation, trade or business" (the professor said "profess"; the verb is *practise*). Art 19 rights belong to citizens.
- **Liberally interpreted** — "anything can be covered under this" — so borderline cases arose: prostitution (§3), liquor and gambling (§4), meat trade (§5).
- **Qualifications:** some professions need prescribed qualifications — law professor (LLB, LLM, NET, PhD), doctor, engineer; you cannot simply declare yourself one (Art 19(6)(i)). Where none is needed, anyone may enter — e.g. selling **paan** on the streets of Varanasi.
- **State monopoly:** the government can create monopolies in some areas for certain reasons (Art 19(6)(ii)).
- **Restrictions** are allowed only in the **general public interest** and must be **reasonable** — never arbitrary or excessive (Art 19(6)).

Asked in class → Answer

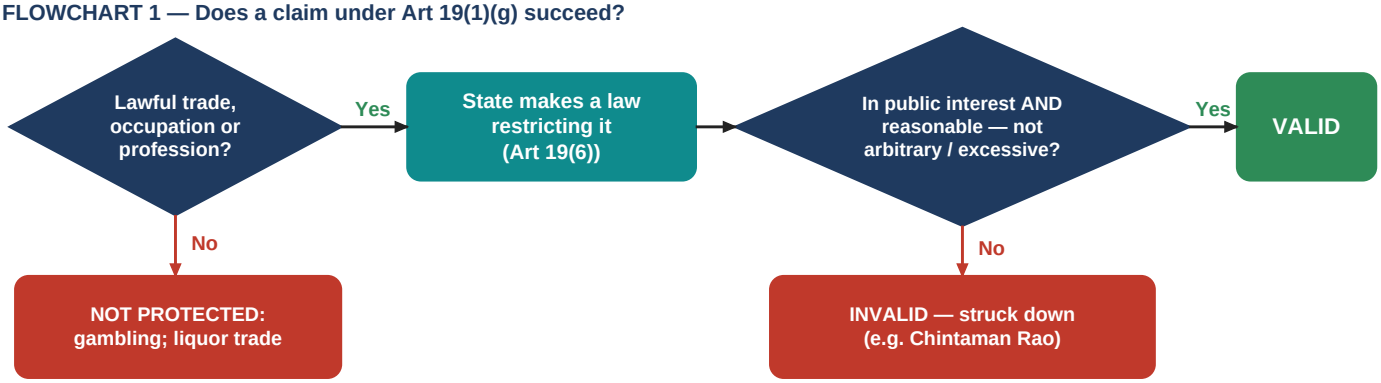
? **What can anyone sell in Banaras without a special qualification?** → **Paan** (the class answer).

Cases cited on restrictions under Art 19(1)(g)

Case	Point noted in the lecture
Chintaman Rao v. State of M.P.	A restriction cannot be arbitrary or excessive; it must be reasonable.
Cooverjee B. Bharucha v. Excise Commissioner, Ajmer	Public-interest regulation of the liquor trade.

Case	Point noted in the lecture
Saghir Ahmad v. State of U.P.	Right to carry on a lawful business versus State control over road transport.
State of Bombay v. R.M.D. Chamarbaugwala	Gambling / wagering is distinguished from legitimate, protected trade; the State has an interest in protecting people, especially the young.
Narendra Kumar v. Union of India	Even a prohibition can be a restriction, but it must satisfy the constitutional requirements (reasonableness).

FLOWCHART 1 — Does a claim under Art 19(1)(g) succeed?



Professor's informal remarks (in his words, paraphrased)

› *Anyone from Banaras answering "paan" doesn't count — "they're local"; outsiders knowing it is the real test. He then broke into the famous Banaras paan song.*

› *Reminder from an earlier class: certain professions need a degree, others (like street paan) need none.*

3. Prostitution, Article 21 and human dignity

- **Issue:** can prostitution be a "trade or business" under Art 19(1)(g)? Lecture position: "no prohibition, but no permission". Under the **Immoral Traffic (Prevention) Act, 1956** prostitution as such is not banned; related acts (keeping a brothel, inducing / instigating a person into it, and similar) are the offences.
- **News anecdote:** a man caught running out of a brothel during a police raid was set free by the Nagpur High Court because the ingredients of the offences (instigating or compelling a woman, maintaining a brothel, etc.) were not charged against him.
- **State of Maharashtra v. Madhukar Narayan Mardikar (1991):** a police inspector forced himself on a woman after "time was over"; the defence was that she was a prostitute, so how could it be rape? The Supreme Court held that even a **woman of easy virtue has the right to dignity** — no one can compel her; protected under **Art 21** (the professor also linked it to the Preamble).

Asked in class → Answer

? **Which case holds that women of easy virtue also have a right to dignity, and in which year?** → *State of Maharashtra v. Madhukar Narayan Mardikar*, **1991** (a student supplied it).

Added note (not in the lecture)

In *Budhadev Karmaskar v. State of West Bengal* (2022) the Supreme Court gave directions that sex workers are entitled to dignity and equal protection, and that police should not arrest or harass consenting adult sex workers. Useful further reading for the harassment concern raised below.

Professor's informal remarks (in his words, paraphrased)

› *The issue "has been paining me a lot": poor, ill-educated girls are pushed into the trade by society and, in his words, some work to educate younger siblings; then police come at evening, hit them and take their earnings.*

› *He will not manage every Art 21 case — "so many cases there" — so students should read this one to see how real society's problems look. He couldn't recall the case name and relied on students, "as always".*

4. Liquor, gambling and the Bihar prohibition question

- **Liquor:** there is no fundamental right to trade in liquor — it is intoxicating; the State may regulate or prohibit it (*Cooverjee*, *Narendra Kumar*). **Added:** Art 47 (Part IV) supports prohibition of intoxicating drinks.
- **Gambling:** like prostitution, it cannot simply be permitted as a "trade" (*Chamarbaugwala*).
- **Three recurring fights in India:** liquor; meat selling / cow slaughter; beef eating. Each is argued as "how can the government control my drinking / eating / business?" The test each time: **what is the general public interest?**

Asked in class → Answer

? **Why was Bihar's first prohibition law unconstitutional, and what changed in the second? (homework)** → A student guessed "immediate necessity"; the professor rejected that. Verified answer: the *Bihar Excise (Amendment) Act, 2016* was struck down by the Patna High Court on **30 Sept 2016** — not because prohibition is impermissible, but because its penalties were held "draconian" and unreasonable (minimum 10 years' imprisonment up to life, fine of at least Rs 1 lakh, confiscation of premises, collective punishment of the community; Arts 14, 19 and 21 were discussed). Bihar replaced it with the *Bihar Prohibition and Excise Act, 2016* (in force 2 Oct 2016); the Supreme Court stayed the High Court order and took up the challenges.

Correction (status)

The professor said the revised law "is now constitutionally valid". In the reports I found, the new Act's validity was still before the Supreme Court and Bihar made "extensive amendments" in April 2022 — so treat "valid" as unconfirmed and check the current status.

Professor's informal remarks (in his words, paraphrased)

› *Students holding mobiles weren't really Googling: "Leftist or rightist?". Rejecting "immediate necessity": "is liquor an immediate necessity for students?"*

› *Warning: ChatGPT "plays tricks" — it did not give the leading cow-slaughter case; always check the original judgment.*

5. Local conditions, cow slaughter and Art 48

- **Law follows local problems and customs:** e.g. there is no Navratri holiday in America but there is in India; India bans disclosing the sex of a foetus (**PCPNDT Act**) because girls were being aborted in states such as Haryana, UP and Bihar; abortion restrictions abroad (below).
- **Why the cow matters in India:** (i) before tractors, calves became **bullocks** that ploughed fields → food; (ii) **milk** for children whose mothers were weak or had died, especially when maternal mortality was high. Gandhi drank goat's milk instead.
- **Where is the ban in the Constitution? Art 48** (Directive Principles): the State shall endeavour to prohibit slaughter of cows and calves and other milch and draught cattle. *Milch* = kept for milk; *draught* = used for pulling / ploughing.
- **Leading cases:** *Mohd. Hanif Quareshi v. State of Bihar* (1958) — the leading case — and the later *State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat* (2005).
- **Essential religious practice (Art 25):** the claim that sacrificing a cow on Bakr-Id is essential was rejected — the religious texts allow several animals (e.g. goat), the ban covers only one, so sacrifice itself remains possible with others.

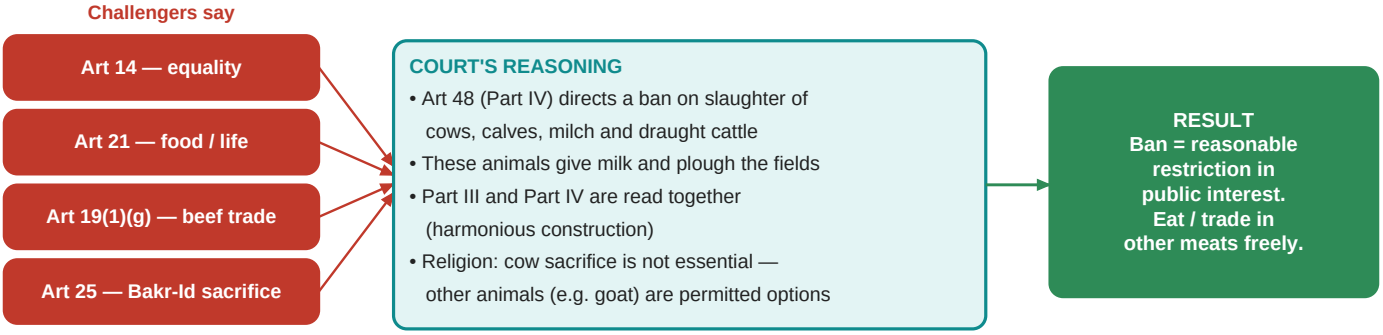
Asked in class → Answer

? **Which animal's milk did Gandhi drink?** → Goat ("bakri"). **Word for mothers dying at childbirth?** → **Maternal mortality** (student).

? **Where is cow slaughter dealt with in the Constitution?** → **Art 48**, a DPSP (student). **What does "milch" mean?** → milk-giving (milch animals).

? **Who died in Ireland after being denied an abortion?** → **Savita Halappanavar** (student; see correction 3). **Name the two cow-slaughter cases.** → *Quareshi* (1958) and *Mirzapur* (2005, State of Gujarat).

FLOWCHART 2 — How the cow-slaughter challenge was answered



Professor's informal remarks (in his words, paraphrased)

› *"My English is weak" — he struggled with milch (memorised it hard in LLB and "failed on the meaning"); a student spelled it out.*

› *Whoever helps us we make a god — "no milk, no calves, no bullocks, no farming, we die". Cow's milk is, in his view, the most nutritious; he says he isn't sure of the scientific or religious details.*

› *He will teach the second (later) case next class and urges students not to bunk: "I guarantee hardly anyone teaches like this." Mentioned Fathima Beevi as the first woman Supreme Court judge.*

6. Fundamental Rights vs Directive Principles — the relationship

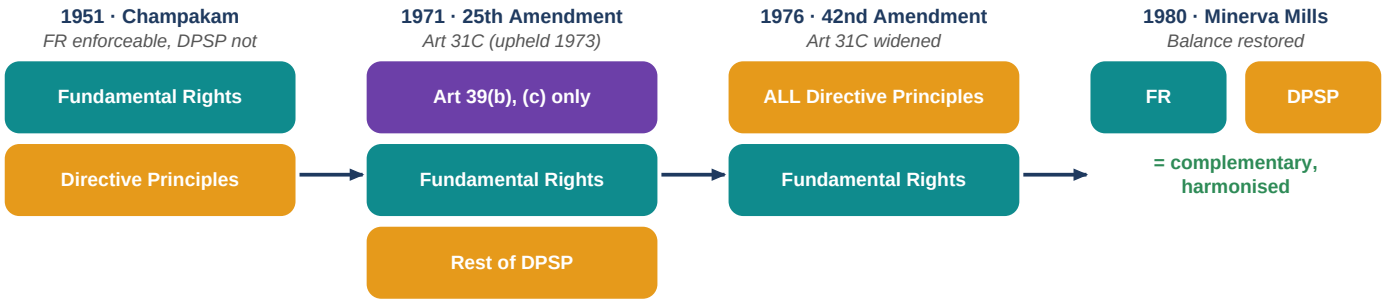
- **Art 32** (right to constitutional remedies) — you may move the Supreme Court; it makes **all Fundamental Rights enforceable**; the State must enforce them.

- **Arts 36–37:** Art 36 defines "State" for Part IV. **Art 37**: the provisions of Part IV are **not enforceable by any court**, yet are fundamental in the governance of the country and it is the State's duty to apply them in making laws.
- **Hence the conflict:** Part III is enforceable, Part IV is not. If a law made for a DPSP (e.g. Art 48) clashes with an FR (e.g. Art 21), which wins? **Initially the FR** — and the class (rightly) answered Art 21. Another example: Uniform Civil Code (Art 44) might be challenged under Art 25.

Evolution of the relationship

Year	Case / Amendment	What happened
1951	*State of Madras v. Champakam Dorairajan*	Caste / religion-based seat allocation kept a higher-scoring student out of medical college. Art 15 (or 29) vs Art 46 (promotion of educational and economic interests of SCs, STs and weaker sections). Held: **FR prevail; DPSP run subsidiary to FR**, as FRs are enforceable and DPSPs are not.
1969	*Chandra Bhavan Boarding & Lodging, Bangalore v. State of Mysore*	Attitude shifts: DPSPs cannot be ignored. The Constitution is not only about rights; it also imposes **duties on the State** (citizens' duties, Art 51A, came only in 1976).
1971	**25th Amendment**	Added **Art 31C**: a law to give effect to **Art 39(b) and (c)** is not unconstitutional even if it violates FRs. Art 39(b)–(c): resources distributed for the common good; no concentration of wealth.
1973	*Kesavananda Bharati*	Challenge to the 24th, 25th, 26th and 29th Amendments. The 25th Amendment was **upheld** (with a partial exception, correction 5).
1976	**42nd Amendment** (Emergency)	Amended Art 31C so that a law implementing **any** Directive Principle survives even if it violates FRs — FR priority gone. Seen as excessive (e.g. FR sacrificed for something like maternity benefit).
1980	*Minerva Mills v. Union of India*	42nd Amendment change struck down. DPSP and FR are **complementary and supplementary** — "two wheels of the same chariot" (Justice Bhagwati, as cited); both must be **harmoniously construed**.

FLOWCHART 3 — Who wins in a clash? (higher block prevails)



In columns 2 and 3 the raised block beats Arts 14, 19 and 31 only (see correction 6).

Asked in class → Answer

? **What does Art 32 say / do?** → Right to move the Supreme Court; makes FRs enforceable. **Art 37?** → Part IV not enforceable by any court. **Art 46?** → Educational and economic interests of SCs, STs and other weaker sections.

? **Art 21 vs Art 48 (or 46) — which prevails at first?** → Art 21 / Fundamental Rights. **Which case, and which articles?** → *Champakam Dorairajan*; Art 15 and 46 (or 29 and 46).

? **Case from Mysore on the relationship; its ratio? (1969)** → *Chandra Bhavan*: the Constitution contains duties of the State as well as rights, not rights alone. **Which case challenged the 24th, 25th, 26th, 29th Amendments?** → *Kesavananda Bharati*; it upheld the 25th.

? **Which case challenged the 42nd Amendment?** → *Minerva Mills*. **Justice Bhagwati's phrase?** → two wheels of the same chariot.

Professor's informal remarks (in his words, paraphrased)

› *His own version: FR and DPSP are "like the two eyes of a beautiful girl" — lose one and the beauty is gone. The "relationship" he means is FR–DPSP, not boy–girl: "I'm not a biology or sociology teacher."*

› *He mis-heard "Kesavananda" for Champakam: "to the best of my understanding I heard Kesavananda, and that's why I got annoyed." The class repeated Champakam Dorairajan in chorus.*

› *Seat-quota illustration: ten seats split by community; students scoring 9 and 8 marks could lose out to 6 and 4. Role-play of Kesavananda promised for "tomorrow, 5:00 pm".*

› *Exam tip: FR–DPSP relationship appears in UPSC papers every year or two. Do not fear decisions — "a boat that never sails is never tested by the waves". He scolds but never lets scolding hurt anyone's academics.*

7. Revision sheet — articles and cases at a glance

Articles mentioned

Article	What it provides	Where it came up
19(1)(a)	Freedom of speech and expression	Warm-up: rights have limits (flag example)
19(1)(g)	Right of citizens to practise any profession, or carry on any occupation, trade or business	Prostitution, liquor, gambling, beef trade
19(6)	Reasonable restrictions in the public interest; prescribed qualifications; State monopoly	Test for every trade restriction
21	Protection of life and personal liberty	*Madhukar Mardikar*; food-choice hypothetical
25	Freedom of religion	Bakr-Id claim; Uniform Civil Code example
32	Right to move the Supreme Court to enforce Fundamental Rights	Makes Part III enforceable
36 – 37	Meaning of "State" in Part IV; Directive Principles are not enforceable by any court but are fundamental in governance	Why FR and DPSP can clash
39(b), (c)	Resources distributed for the common good; no concentration of wealth and means of production	Protected by Art 31C
31C	Inserted by the 25th Amendment for 39(b), (c); widened to all DPSPs by the 42nd Amendment (struck down 1980)	Parliament's attempts to lift DPSPs
46	Educational and economic interests of SCs, STs and other weaker sections	*Champakam Dorairajan*
47	Raising nutrition and public health; prohibition of intoxicating drinks (added note)	Liquor
48	Preserving breeds; prohibiting slaughter of cows, calves and other milch and draught cattle	*Quareshi*, *Mirzapur*
51A	Fundamental duties of citizens (added in 1976)	Contrast with State duties in *Chandra Bhavan*

Cases mentioned *(years not given in the lecture are added for reference)*

Case	Year	Topic	One-line takeaway
Chintaman Rao v. State of M.P.	1950	Art 19(1)(g)	Restriction must not be arbitrary or excessive.
Cooverjee v. Excise Commissioner, Ajmer	1954	Liquor trade	Public-interest regulation of liquor.
Saghir Ahmad v. State of U.P.	1954	Road transport	Lawful business vs State control.
State of Bombay v. R.M.D. Chamarbaugwala	1957	Gambling	Gambling is not protected trade.
Narendra Kumar v. Union of India	1960	Prohibition	A prohibition may be a valid restriction if it meets the constitutional requirements.
Mohd. Hanif Quareshi v. State of Bihar	1958	Cow slaughter	Leading case; cow-sacrifice not essential to Bakr-Id.
State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat	2005	Cow slaughter	Later case; FR and DPSP read harmoniously.
State of Maharashtra v. Madhukar Narayan Mardikar	1991	Art 21	Women of easy virtue have a right to dignity.
State of Madras v. Champakam Dorairajan	1951	FR vs DPSP	FR prevail; DPSP subsidiary.
Chandra Bhavan Boarding & Lodging v. State of Mysore	1969	FR vs DPSP	DPSPs matter; the State has duties too.
Kesavananda Bharati v. State of Kerala	1973	Amendments	24th, 25th, 26th, 29th challenged; 25th upheld (except part of Art 31C).
Minerva Mills v. Union of India	1980	FR vs DPSP	Two wheels of one chariot; harmony.

8. Accuracy corrections and clarifications

1. Art 19(1)(g) wording: “practise any profession”, not “profess”.

2. “Nagpur High Court” is the Nagpur Bench of the Bombay High Court.

3. Ireland case: the Irish death was **Savita Halappanavar** (Ireland, October 2012), who died of septicaemia after being refused termination of a miscarrying pregnancy — not a Norway / caesarean case. The student was right.

4. Cow-slaughter cases: the later case is *State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat* (2005, seven judges), not “Mirzapur v. State of Bihar”. *Quareshi* (1958) upheld the ban on cows, calves and milch / draught cattle but struck the ban on useless bulls and bullocks as excessive; *Mirzapur* overruled that part and upheld the wider ban. Because Minerva Mills (1980) came after Quareshi (1958), the “complementary and supplementary” harmony ratio was applied in the **later** case.

5. Kesavananda: it upheld the 24th, 26th and 29th Amendments and the 25th except the second part of Art 31C (the bar on judicial review), which it struck down; it also laid down the basic-structure doctrine. So it did not leave every amendment untouched. Minerva Mills later held that the balance of Parts III and IV is part of the basic structure.

6. Scope of Art 31C: it shields laws only against challenge under Arts 14, 19 and 31 (Art 31 was repealed in 1978) — not against Art 21. The “Right to Life” remark was hyperbole.

7. Pairs in the conflict example: Art 48 = cows; Art 46 = SC / ST / weaker sections; Art 40 = village panchayats. The intended clash is Art 21 vs Art 48, and Art 15 / 29 vs Art 46 in Champakam.

9. Exam-ready outline: relationship of Fundamental Rights and Directive Principles

1. Starting point — Part III is enforceable through Art 32; Part IV is not enforceable by any court (Art 37), yet is fundamental in governance and binds the State in making laws.

2. FR supremacy (1951) — *Champakam Dorairajan*: in a clash FR prevail and DPSPs run subsidiary to them. (Added: the First Amendment then inserted Art 15(4).)

3. Shift in attitude (1969) — *Chandra Bhavan*: DPSPs cannot be ignored; the Constitution imposes duties on the State as well as conferring rights.

4. Parliament lifts DPSPs (1971–76) — 25th Amendment — Art 31C for Art 39(b), (c), upheld in *Kesavananda Bharati* (1973) except the bar on judicial review; 42nd Amendment extended it to all DPSPs.

5. Harmony (1980) — *Minerva Mills* struck down the 42nd Amendment extension: FR and DPSP are complementary and supplementary, “two wheels of the same chariot”, to be harmoniously construed.

6. Application — Cow-slaughter cases (*Quareshi*, 1958; *Mirzapur*, 2005): Art 48 read with Arts 14, 19(1)(g), 21 and 25 — the ban is a reasonable restriction in the public interest, and other meats stay open.

Read next
Madhukar Narayan Mardikar · Bihar prohibition judgments · *Quareshi* and *Mirzapur* · *Chandra Bhavan* · *Minerva Mills*. *Not included: remarks on individual politicians, communities and classmates’ personal matters, which are not legal content.*